

24NWCV02785 24NWCV02785

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-04

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Case Number: 24NWCV02785 Hearing Date: September 4, 2026 Dept: P

RODNEY HENDERSON v. LARRY R. HENDERSON

CASE NO.: 24NWCV02785

HEARING: 09/04/2026 @ 9:30 AM

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TENTATIVE ORDER

Defendant's motion to enter an interlocutory judgment of partition by sale and appointment of referee is CONTINUED to Friday, December 11, 2026 at 9:30 AM in Dept. P.

Moving party to give notice.

Defendant Larry R. Henderson (Defendant) moves the Court to enter an interlocutory judgment for partition by sale and to appoint a referee.

Background

On August 27, 2025, Plaintiff Rodney Henderson (Plaintiff) filed a verified complaint for partition of real property against Defendant and Does 1 through 10, inclusive. This action concerns the property known as 6423 El Selinda Avenue, Bell Gardens, California 90201 (Subject Property), a triplex or multi-family unit with three units. (Complaint, ¶¶ 2, 9.) The complaint alleges Plaintiff and Defendant hold title to the Subject Property as tenants in common, and by filing this complaint, Plaintiff severs the tenancy in common

and requests partition by sale. (Complaint, ¶ 5.) The complaint alleges Defendant, with the consent of Plaintiff, assumes control over the Subject Property but has been allowing tenants to occupy units without charging rent. (Complaint, ¶ 10.) The complaint asserts a single cause of action for partition.

On March 14, 2025, a Notice of Death of Party was filed stating that Plaintiff Rodney Henderson passed away on February 11, 2025.

On March 20, 2025, the Court granted the parties' Stipulation and Order to Continue Trial to November 19, 2025.

On October 7, 2025, the Court continued the hearing on this motion and Trial Setting Conference to November 18, 2026.

On November 18, 2025, the Court continued the hearing on this motion and Trial Setting Conference to March 26, 2026.

On March 26, 2026, the Court continued the hearing on this motion and Trial Setting Conference to May 28, 2026.

On May 28, 2026, the Court continued the hearing on this motion and Trial Setting Conference to today's date.

Continuance

Plaintiff passed away after this motion was filed and before this motion could be heard. The Notice of Death of Party states: "Decedent's surviving spouse, Erika Valles, is in the process of starting a probate action to be appointed the administrator of Decedent's Estate, and intends to thereafter move this honorable court to substitute the Decedent's Estate into the lawsuit."

"As a general proposition, it is true...that...judgment cannot be rendered for or against a decedent, nor can it be rendered for or against a personal representative of a decedent's estate, until the representative has been made a party by substitution." (Sacks v. FSR Brokerage, Inc. (1992) 7 Cal.App.4th 950, 956.)

On October 7, 2025, the Court continued this matter to

today's date "to ascertain the status of the potential probate action and appointment of an administrator of Plaintiff-Decedent's estate." (10/7/25 Order). Defense counsel represented to the Court that proceedings relevant to this matter were scheduled in Probate Court for November 4, 2025.

At the hearing on November 18, 2025, Defendant represented to the Court that a hearing in Probate Court is scheduled for March 6, 2026.

Since the March 26, 2026 hearing, there have been no filings to substitute Plaintiff-Decedent's Estate into this action or filings regarding the status of the Probate Court proceedings.

The Court finds a continuance warranted to ascertain the status of the potential probate action and appointment of an administrator of Plaintiff-Decedent's estate.

Defendant's motion to enter an interlocutory judgment of partition by sale and appointment of referee is CONTINUED to Friday, December 11, 2026 at 9:30 AM in Dept. P. The parties are instructed to file any declarations advising the Court of any updates prior to the continued hearing date.